



Nationally Consistent Collection of Data on School Students with Disability

2025 Guidelines

**Note: If you are reading a printed version of these Guidelines,
please check the online version of the Guidelines to ensure you are
reading the latest version: 2025 Guidelines.**

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Feedback or questions about these Guidelines can be sent to the Department of Education dedicated NCCD inbox: NCCDSupport@education.gov.au.

Further information and links are on the [NCCD Portal](#) (the Portal).

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The document must be attributed as being developed by the Commonwealth of Australia and by the following title: *Nationally Consistent Collection of Data on School Students with Disability: 2025 Guidelines*.

How to use the Guidelines

The Guidelines are in 4 sections:

- Section A provides important general information about the Guidelines
- Section B contains an overview of the Nationally Consistent Collection of Data on School Students with Disability (NCCD) and guidance on which students to include in the NCCD
- Section C outlines the process for administering the NCCD in a step by step format
- Section D contains appendices for further information and reference.

A. About the Guidelines

A.1. Introduction

These are the NCCD Guidelines for 2025 (the Guidelines).¹

The Guidelines assist approved authorities and school teams to understand and accurately complete the NCCD.

Note: An ‘approved authority’ is a body approved² to receive financial assistance from the Australian Government for one or more schools. An approved authority of a school may be a school.

For a government school, the approved authority is the state or territory government where the school is located. For a non-government school, the approved authority is the body corporate approved by the Minister for the school.

See the definitions of ‘approved authority’ and ‘approved system authority’ in the [Glossary](#).

The Guidelines are the authoritative guide to the NCCD and form the basis of technical information and advice on the obligations of schools to provide educational adjustments for students with disability and report these students in the NCCD. The Guidelines refer to or specify functions, responsibilities or roles placed on schools, school teams and approved authorities.

All schools and approved authorities in Australia participate in the NCCD annually. The NCCD applies across all educational settings and contexts, including mainstream schools and classes, special schools and special classes that cater for students with needs related to their

¹ The Guidelines are the ‘Ministerial Council disability guidelines’ referred to in the *Australian Education Regulations 2023* (see section 4).

² An approved authority is approved by the Minister under section 73 of the *Australian Education Act 2013*.

disability, excluding children attending pre-school programs (including where these are co-located with schools) in the years before formal schooling/primary school. Approved authorities are required to collect NCCD information and provide it to the Australian Government Department of Education (the department)³.

It is the responsibility of the approved authority to ensure that all functions, roles and responsibilities imposed on, or in respect of, a party are performed appropriately in order for the authority to meet its obligations under the [Australian Education Act 2013](#) (the Act) and the [Australian Education Regulations 2023](#) (the Regulations).

The Guidelines specify:

- which students approved authorities must report on for the NCCD
- the information on those students approved authorities must provide to the department
- the date by which that information must be provided to the department.

Note: *References in these Guidelines to the NCCD mean the NCCD information submitted by schools.*

A.2. Help

For clarification on the NCCD Guidelines, see the [NCCD Portal](#).

The [NCCD Quick Guide](#) is an abbreviated version of the Guidelines, providing school teams with a step-by-step process to implement the NCCD.

Your approved authority or non-government representative body may be able to provide further information about the NCCD collection arrangements for your school. Contacts for government, Catholic and independent sectors are on the Portal at [Key contacts](#).

A.3. Key dates - Census Day

The government and non-government School Census (the Census) provides the Australian Government, parents, guardians, carers and associates, and the community with information about schools and students in Australia.

Census Day is the date on which schools identify the student population to count for the Census. The NCCD is collected at the same time as the Census.

A school's Census Day is **the first Friday in August each year**⁴, unless otherwise determined by the Minister.

³ This requirement is set out in section 58A and subsections 52(1) and 52(4) of the Regulations.

⁴ Determined in writing by the Minister or their delegate under section 5 of the Regulations. In certain circumstances, the Minister may determine an alternate Census Day for a non-government school.

A.4. How to submit NCCD information

A.4.1. Government schools

Government schools provide their NCCD information to their approved authority, which is their state or territory government.

The state or territory government will notify schools of the date NCCD information must be provided to them.

The state or territory government must provide this collated NCCD information on behalf of their schools to the department by the second Friday in October each year.

A.4.2. Non-government schools

NCCD information is submitted by non-government school approved authorities as part of the Non-Government Schools Census.

If an approved authority has more than one school, it may notify their schools of an earlier date by which the schools must provide NCCD information to them.

Non-government approved authorities must provide NCCD information to the department by the second Friday in August each year.

The collection portal ([SchoolsHUB](#)) for the NCCD will open to receive information on the Monday prior to Census Day. Information can be certified in SchoolsHUB from Census Day onwards.

A.5. Privacy arrangements

The Australian Government, state and territory governments, and non-government school approved authorities involved in the collection of student information for the NCCD, are committed to the protection of personal information, and comply with applicable privacy legislation and policies in their respective jurisdictions.

Student information provided to the department for the purposes of the NCCD must not explicitly identify any student.

In limited cases, a student may be reasonably identifiable from NCCD information, for example, because of the small size of a school. To the extent this may occur, the disclosure of such student information to the department – by an approved authority for a school, approved authorities for non-government schools and approved system authorities – and the collection of that information by the department, are required and authorised by law for

the purposes of the *Privacy Act 1988 (Commonwealth)* (Privacy Act) and other applicable privacy-related legislation and policies.

In addition to the NCCD data collection process, the department undertakes assurance activities (including the annual [Non-Government Schools Census Post-Enumeration](#) process) to ensure that information provided for the purposes of the NCCD is complete and accurate. This is part of the department's key assurance and compliance activities. Where this occurs, an authorised person may sight or collect and use personal information from approved authorities, and will handle any such information in accordance with the Privacy Act⁵. The collection and use of personal information in such circumstances is authorised by law for the purposes of the Privacy Act.

Note: *Information about how individuals can access and correct personal information held by the department, or about how to make a privacy complaint to the department, is contained in the department's [Privacy Policy](#).*

B. [Overview of the NCCD](#)

B.1. Purpose of the NCCD

The NCCD collects data about school students with disability in Australia who are receiving adjustments in a consistent, reliable and systematic way. It enables schools, education authorities and governments to better understand the needs of students with disability and how they can be best supported at school. Completing the collection is required under the Regulations.

B.1.1. Educational support for students with disability

The [Disability Standards for Education 2005](#) (the Standards) that are made under the [Disability Discrimination Act 1992](#) (DDA) seek to ensure that Australian students with disability are able to access and participate in education on the same basis as students without disability.

Note: *'On the same basis' is defined in s2.2 of the Standards. In summary, it means that students with disability have opportunities and choices that are comparable with those offered to students or prospective students (as applicable) without disability in relation to:*

- *admission or enrolment*
- *participation in courses or programs*
- *use of facilities and services provided.*

⁵ See sections 39 and 39A of the Regulations for the powers granted to authorised persons to require access to premises and/or records or information.

To this end, the Standards require schools to provide reasonable adjustments for students with disability where necessary to help them better access education, based on the professional judgement of school teams, in consultation with the student or their parents, guardians, carers or associates.

Note: *In identifying reasonable adjustments for a student, schools should follow the process set out in the Standards which includes consulting with the student or their associate, and considering what adjustments are necessary and reasonable. An adjustment is reasonable if it balances the interests of all parties affected.⁶ See section [C.2 Step 2: Provide adjustment\(s\)](#).*

Note: Associate includes:

- a spouse of the person
- another person who is living with the person on a genuine domestic basis
- a relative of the person
- a carer of the person
- another person who is in a business, sporting, or recreational relationship with the person⁷.

Through the NCCD, schools retrospectively report the level of educational adjustment(s) provided to students with disability over a minimum of 10 weeks (cumulative in the 12 months preceding Census Day) and the broad category of disability identified as the main focus or driver for the adjustment(s) provided in a given reporting year. Reporting through the NCCD confirms that schools have evidence that substantiates that consultation, assessment, implementation, and review of the adjustment(s) reported has occurred.

Schools are not required to create new or additional evidence for the purposes of the NCCD; this should already be standard practice to demonstrate compliance with legal obligations under the DDA and the Standards (see section [C.1: Step 5: Record and retain evidence of adjustment\(s\)](#)).

B.1.2. Policy development and planning

Information collected through the NCCD supports evidence-based policy development and future planning to better equip schools and education authorities or sectors to support students with disability.

B.1.3. Recurrent funding

NCCD information is used to calculate the Student with Disability Loading for schools under the Act⁸.

⁶ See section 3.4 of the [Disability Standards for Education 2005](#).

⁷ See section 1.4 Definitions of the [Disability Standards for Education 2005](#).

⁸ calculated under Part 3 of the Act.

This loading is based on the level of adjustment being provided to the student. All schools and approved authorities must ensure the information provided to the department is:

- accurate
- supported by evidence
- provided at the location (campus) level required by the department
- quality assured prior to submission.

Failure to do so may result in:

- the department being unable to calculate the student with disability loading for a school for a year
- action to recover overpayments of disability loading funding
- consideration of compliance action under the Act against an approved authority.

Note: *Providing false or misleading information is a criminal offence and may lead to prosecution under section 137 of the Criminal Code Act 1995.*

Further information about the NCCD and Australian Government school funding is available on the [Recurrent funding for schools page](#) on the department's website.

B.1.4. National reporting

NCCD information is published in the:

- [Report on Government Services](#), produced by the Productivity Commission
- [National Report on Schooling in Australia](#), produced by the Australian Curriculum, Assessment and Reporting Authority (ACARA).

Information in these reports is aggregated to the national and state/territory level.

B.2. The NCCD Model

The NCCD collects information about school students with disability receiving adjustments across Australia in a consistent, reliable, and systematic way.

In practice, students with disability will be receiving reasonable adjustment(s) from the school so that they are able to access and participate in education *on the same basis* as students without disability, as required by the Standards.

There are two fundamental aspects to the NCCD Model:

1. the legislative requirements and professional responsibility placed on schools to provide reasonable adjustment(s) under the DDA and the Standards,
2. the focus placed on the level of adjustment provided to the student based on their functional needs, in addition to the student's category of disability.

Under the NCCD Model, school teams use their professional judgement, based on evidence, to determine:

- the level of adjustment provided to students with disability to access and participate in education *on the same basis* as students without disability, in both the classroom and whole of school context
- the broad category of disability that is the main driver or focus of the adjustments (cognitive, physical, sensory, or social/emotional).

This approach is based on the principle that school teams, in consultation with the student, parents, guardians or carers or associates and external specialists, are best placed to determine what adjustment(s) a student with disability needs to access, participate and learn in school education *on the same basis* as students without disability.

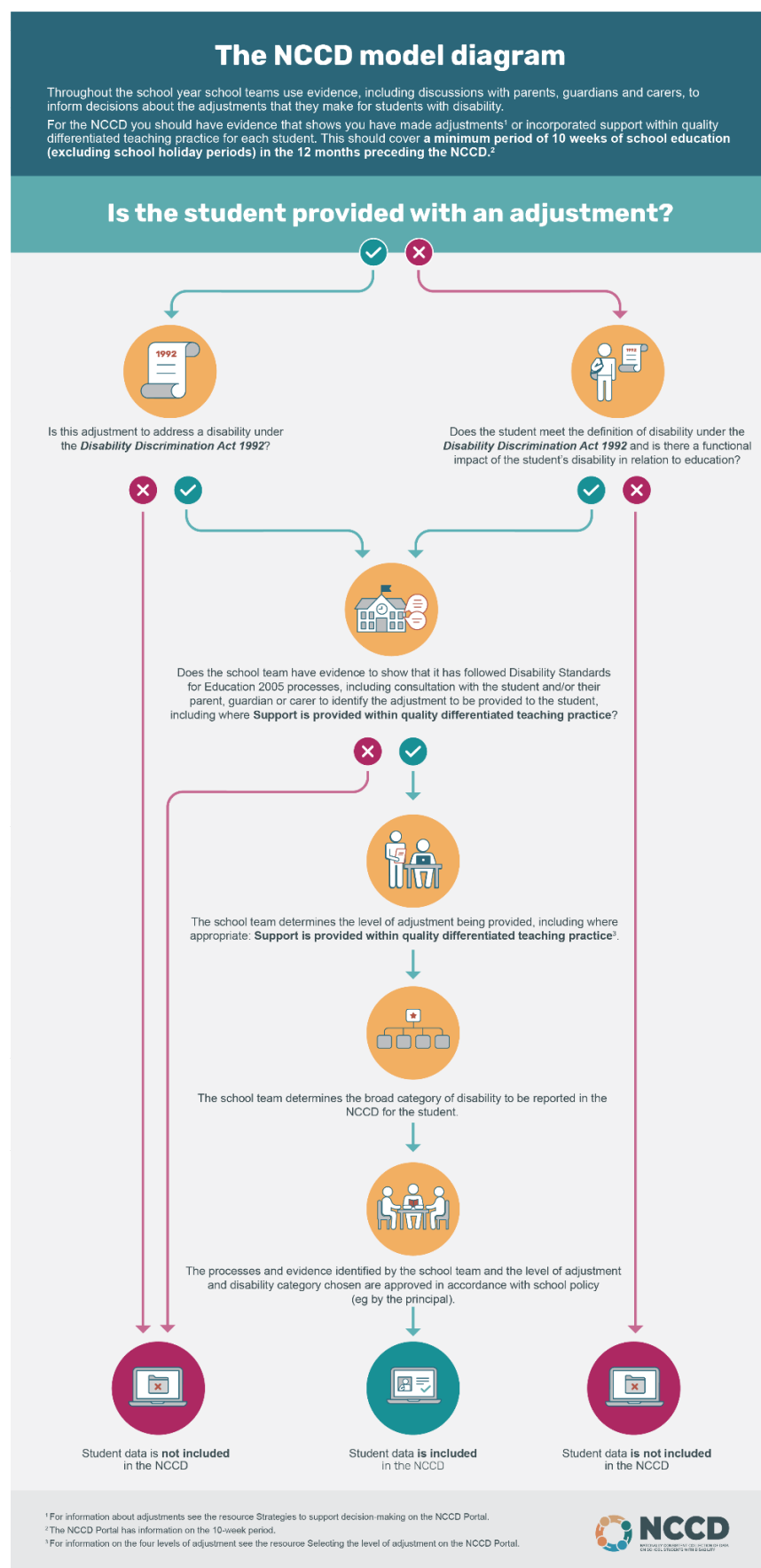
The definition of disability used in the DDA is outlined in the [Glossary](#). A detailed description of each Level of Adjustment and Category of Disability is at [Appendix 2. Levels of adjustment](#) and [Appendix 3. Broad categories of disability](#).

The NCCD Model assists schools to decide whether a student should be included in the NCCD (see flow diagram in Figure 1). If there is documented evidence that the student has received an adjustment(s) to address the functional impact of a disability for a minimum of 10 weeks of school education (cumulative in the 12 months preceding Census Day), the student must be included in the NCCD (see section [B.3 Which students must be counted?](#)).

Note: *Functional impact* of a student's disability in relation to education includes the impact on communication, mobility, curriculum access, personal care, and social participation. Other areas that might be considered for some students are safety, motor development, emotional wellbeing, sensory needs, and transitions.

For more information see [What is the NCCD Model?](#) on the Portal.

Figure 1 – The NCCD Model Diagram



B.3. Which students must be counted?

NCCD information must be provided in relation to each student with disability at a school location (campus)⁹.

A student must be counted in the NCCD when all the following criteria are met:

- the student is eligible for inclusion through either the school's Census, or (for non-government schools) approved for inclusion in the Census by a [special circumstances application](#)
- the student has a disability (diagnosed or imputed) according to the definition in the DDA (outlined in the [Glossary](#))
- the student has been provided with an adjustment(s) to address the functional impact of a disability for a minimum of 10 weeks (cumulative) of school education in the 12 months preceding Census Day.

Students at a school who do not meet these requirements, must not be counted in the NCCD.

B.3.1. Full-time and part-time students

Schools or approved authorities must report the number of full-time and part-time students with disability (who meet all NCCD requirements) both as a head count and full-time equivalent (FTE) workload when submitting NCCD information.

When a student is not undertaking a full-time workload (that is, the student is studying part-time), the fraction of the full-time workload the student is undertaking must be reported. Part-time students must have an FTE between 0.1 and 0.9.

Students must be reported based on their workload as prescribed by the relevant state or territory for a student at that Year level.

Definitions of full-time and part-time students are in the [Glossary](#).

B.3.2. Students enrolled at more than one school or location

Where a student included in the NCCD is **enrolled at more than one school**, each school or approved authority must report the fraction of the full-time workload that student is undertaking at that school. The combined reporting of the enrolment of this student must not exceed 1.0 FTE. For example, a student attends School A for three days per week (0.6 FTE) and School B for two days per week (0.4 FTE).

Where a student included in the NCCD attends **different locations (campuses) of a school**, the student must be counted in the NCCD at each location based on the workload undertaken on Census Day.

⁹ See subsections 58A(1) and 58A(5) of the Regulations.

For further information see the [frequently asked questions](#) on the Portal.

B.3.3. Newly enrolled students with disability

Where a new student has enrolled at a school during the school year, the student can be included in the NCCD if they are included in the school's Census and the student has been provided with 10 weeks (cumulative) of adjustment(s) within the 12 months prior to Census Day.

The new school can use evidence of adjustment(s) from the student's previous school from the 12 months prior to Census Day together with evidence from the new school that demonstrates that similar adjustment(s) are required, or being implemented, at the new school.

The 10 weeks can include any adjustment(s) provided during the 12 months prior to Census Day at their new school or a previous school. If the new school has not provided adjustments for at least 10 weeks cumulatively, it must have sufficient evidence from the previous school to demonstrate that adjustments across both schools have been provided to the student for at least 10 weeks (cumulative) during the 12 months prior to Census Day.

B.3.4. Overseas students with disability

In non-government schools, overseas students¹⁰ with disability **must** be counted in the NCCD if they meet NCCD requirements **and** have been counted in the Non-Government Schools Census.

In government schools, overseas students with disability are counted in accordance with [C.8.1 Government schools](#).

Schools/approved authorities must clearly identify where a student reported in the NCCD is an overseas student.

Note: *Overseas students with disability included in the NCCD are excluded from Australian Government recurrent funding calculations and related purposes.*

Further information: [Department of Home Affairs Student Visa page](#).

B.3.5. Distance education students with disability

Distance education students who meet NCCD requirements **must** be included in the NCCD. The same requirements for collection and retention of evidence apply for the inclusion of these students.

See the definition of a distance education student in the [Glossary](#).

¹⁰ See section 6 of the Act and section 6 of the Regulations for more information on what constitutes an overseas student (see also Appendix 4: Glossary).

Note: *Distance education is not a NCCD-eligible adjustment in and of itself.*

B.3.6. Students with disability undertaking learning from home

In the case of potential emergencies, natural disasters or other critical incidents that pose a risk to health or safety of school staff and students, schools may need to support periods of learning from home for students, including students with disability due to temporary school closure or lockdown. This takes many forms, including online classes and set work, as well as hard copy work sent to homes.

In this context, ‘students undertaking learning from home’ refers to students who would normally be learning in an on-site school setting (that is, **NOT** students being home schooled or undertaking distance education).

The obligations on schools and approved authorities regarding provision of reasonable adjustments for students with disability under the DDA and the Standards **apply in all school settings, including learning from home.**

Reasonable adjustments must be provided to students with disability undertaking learning from home. These adjustments may be different from those provided at the school location, for example:

- there may be fewer adjustments if the student already has appropriate equipment in the home to meet their needs
- there may be additional adjustments, for example if the school has certain assistive technologies not available at the student’s home.

School teams must assess the student’s needs to learn and access education resulting from disability, provide reasonable adjustments and maintain supporting evidence in the same manner as done in an on-site school setting. See section [C.3 Step3: Determine the level of adjustment\(s\)](#).

Note: *Learning from home is not a NCCD-eligible adjustment in and of itself.*

Note: *Students being home schooled (as opposed to ‘students undertaking learning from home’ on a temporary basis, such as during the pandemic) are not entitled to receive the student with disability funding loading unless the department has approved a special circumstances application (for non-government schools) and added the student to the Census, or the department has waived the requirement for a Census special circumstances application.*

Note: *Schooling online can present additional safety challenges. Guidance and resources on eSafety is available on the [eSafety Commissioner website](#).*

B.3.7. Special school settings

The NCCD applies across all educational settings and contexts, including special schools, special assistance schools and special classes (collectively called special school settings¹¹).

Special school settings typically provide modified environments which may include, for example, specialised equipment, employment of personnel to assist school staff, specialised programs and interventions tailored to support the educational needs of students.

The nature of special school settings implies that the adjustments to support the student are in place all, or most of the time, and that they are significant in scope and scale.

While these settings may have multiple students with disability likely to be identified as requiring 'substantial' or 'extensive' adjustment(s), each student **must be assessed individually** on their category of disability, the functional impact of the disability and level of adjustment.

B.3.8. Special school Census reporting

Where special schools report their school Census by age group rather than year of schooling (that is, its students are ungraded), the school must allocate its students counted in the NCCD to a primary or secondary level of education as follows:

- primary level of education for students aged 4-11 years
- secondary level of education for students aged 12-21 years.

Ages are as at 1 July each year.

Note: *These age limits do not apply to schools that are not special schools.*

B.4. What information must be provided on each student?

Approved authorities are required under the Regulations¹² to provide the following information on each student with disability at a school:

- the student's category of disability (as defined in the Guidelines)
- the student's level of adjustment (as defined in the Guidelines)
- the student's year of schooling
- if the student is not undertaking a full-time study load, the fraction of the full-time study load that the student is undertaking
- any other information required by the Guidelines to be reported

¹¹ Special school settings are also referred to as support schools or support classes.

¹² See subsections 52(1), 52(4), 58A(1) and 58A(2) of the Regulations.

- any other information determined by the Minister by legislative instrument.

This information cannot be aggregated across multiple schools or locations of a school, or suppressed for privacy reasons,¹³ because Australian Government school funding is calculated at the individual school level.

***Note:** Any aggregation or suppression of student information may result in the student with disability loading for those schools being unable to be calculated, or a reduction in that loading. It may also trigger compliance action under the Act.*

C. Implementing the NCCD

There are eight key steps in implementing the NCCD:

- Step 1 [Prepare your school for the NCCD](#)
- Step 2 [Provide adjustment\(s\)](#)
- Step 3 [Determine the level of adjustment\(s\)](#)
- Step 4 [Determine the category of disability](#)
- Step 5 [Record and retain evidence of adjustment](#)
- Step 6 [Quality assurance](#)
- Step 7 [Approve the data](#)
- Step 8 [Submit the data.](#)

C.1. Step 1: Prepare your school and school community

C.1.1. Ensure school personnel are fully trained

All school personnel **must** understand their role in meeting the obligations to students with disability that arise under the DDA and the Standards.

Members of the school team(s) responsible for contributing to or completing the NCCD should be identified, including personnel involved in moderating decisions relating to adjustment(s) provided to students. All identified members of the school team need to understand the NCCD Guidelines and the steps involved to complete the NCCD.

All personnel who will have any involvement with the NCCD should complete relevant professional learning available on the Portal to develop or refresh their knowledge and understanding of the DDA and Standards. This will strengthen the day-to-day practice of school teams and provide an important platform for further understanding the NCCD Model and its application.

¹³ Information an approved authority is required to provide under the Regulations in relation to each student with disability at the school must not explicitly identify a student (see subsection 58A(4)).

Further information:

- [Professional learning](#): eLearning modules on the DDA and the Standards are available on the Portal
- [Case studies](#): available on the Portal and searchable by primary/secondary, level of adjustment, category of disability, and mainstream/special school
- [Disability Standards for Education 2005](#): on the department's website with accompanying guidance notes
- [Standards for parents and the community](#): practical guides available on the Portal.

C.1.2. Establish processes for recording and storing evidence

Sound, year-round record keeping practices and an efficient system for school teams to collate evidence and access records will ensure evidence is readily accessible and can be drawn on to complete the data collection process.

See section [C.5.1 Recording evidence](#) for more details.

Your approved authority may have resources you can use for this purpose.

Further information on the Portal:

- [Recording and Storing Evidence](#): For general information
- [NCCD evidence templates](#): User friendly tools to facilitate evidence collection

Non-government school approved authorities may also wish to refer to the [Evidence Requirements for the NCCD Fact Sheet](#) developed by the department. The Fact Sheet seeks to provide guidance to non-government schools and school systems to make the school wide NCCD administration as streamlined as possible while ensuring the essential evidence is available.

C.1.3. Notify the school community of the NCCD

Approved authorities and their schools **must** notify students and parents, guardians, carers or associates to ensure that all involved in the NCCD are fully aware of the data collection, its purpose, legislative basis, to whom NCCD data will be disclosed, and that assurance activities may be conducted by the department in relation to the NCCD data¹⁴.

¹⁴ Personal information is protected under the Privacy Act and the Australian Privacy Principles (APPs) set out in Schedule 1 to the Act. This notification is consistent with APP 5 — notification of the collection of personal information.

Further information:

- the [Portal](#) has fact sheets, a sample letter and other resources for parents, guardians, carers and associates
- a '[parents/guardians privacy notice](#)' is on SchoolsHUB.

C.2. Step 2: Provide adjustment(s)

C.2.1. Assess the functional impact of the student's disability

Adjustment(s) for students must be made to meet **ongoing, long-term specific needs directly related to their disability that has a functional impact on their schooling.**

Some examples of areas in which students may require adjustments include:

- Teaching and learning
The student may require changes in curriculum and teaching practices to achieve the learning outcomes described in syllabus documents.
- Communication
The student's ability to receive and understand information being conveyed by others and the student's ability to convey a message to others.
- Participation
The student's ability to engage in successful interactions and participate effectively in the full school program and the management strategies required to ensure the student's safety.
- Personal care and safety
The student may require essential hygiene, eating, drinking and dietary routines which require individual management, and the procedures specified in an individual health care plan which require specialised support.
- Movement
The student's level of functional independence in mobility and positioning and the student's ability to use the hand motor skills required to participate in learning activities.

For further information see [professional learning](#) on the Portal.

Notes:

Activities which have been funded through the National Disability Insurance Scheme (NDIS) are not to be included in the NCCD. In some instances, a school may have agreed to a parent's request to deliver an NDIS support at school during school time. This is not a NCCD-eligible adjustment as it is not funded by the school.

It is the school's responsibility to record which activities have been funded through the NDIS and which have not.

For further information see the [NDIS Act 2013 and NDIS Rules](#).

C.2.2. Decide what adjustment(s) need to be made

Once the functional impact of a student's disability is determined, the next step is to decide what adjustment(s) need to be made to address those impacts and are reasonable. An adjustment is considered 'reasonable' if it balances the interests of all parties affected.¹⁵ In assessing whether a particular adjustment for a student is reasonable, consideration should be given to the effect of the adjustment on the student and all other relevant circumstances and interests.

For further information see '[Is there an adjustment?](#)' on the Portal.

C.2.3. Consultation with the student, their associate, parents, guardians or carers

The Standards require that before the school makes an adjustment for a student, it must consult the student or an associate of the student about the type of adjustment(s) required. 'Associate' is defined in section [B.1.1 Educational support for students with disability](#) and the [glossary](#) and includes relatives and carers of the student.

In most cases, it is recommended that schools consult with the student and the student's parents, guardians or carers before making an adjustment(s). However, for some students, it may be more appropriate to consult only with the student themselves or only with their associate. Under these circumstances, it is not mandatory for the school to consult with parents, guardians or carers, **but the adjustment(s) must still be made.** In this circumstance the school should document the reasons they have not consulted with the parent, guardian or carer – a brief explanation will be sufficient.

In each case, this is a matter for the school to determine depending on the student's individual circumstances and their cognitive capacity to make decisions for themselves as mature minors.

Further information for parents, guardians and carers in other languages is available on the [Portal](#).

Note: *While it is desirable for associates, parents, guardians or carers to agree to the adjustment(s), consultation about adjustments does not require agreement in order for those adjustments to be applied, or for the student to be included in the NCCD.*

C.3. Step 3: Determine the level of adjustment(s)

Definitions and descriptors of the levels of adjustment are at [Appendix 2. Levels of adjustment](#).

The four levels of adjustment in the NCCD are:

¹⁵ See section 3.4 of the [Disability Standards for Education 2005](#).

- Support provided within Quality Differentiated Teaching Practice (QDTP)
Students that receive **minor adjustments** reasonably expected as part of quality teaching/school practice. These adjustments are provided through usual school processes, without drawing on additional resources.
- Supplementary
Students receive adjustments supplementary to the strategies and resources already available for all students within the school for particular activities **at specific times throughout the week.**
- Substantial
Students have substantial support needs and receive essential adjustments and require considerable assistance to the usual educational program **at most times, on most days.**
- Extensive
Students have very high support needs and are provided with extensive targeted measures and sustained levels of intensive support **at all times.**

Where school teams have difficulty deciding between the levels of adjustment, they should consider the frequency, intensity, duration and range of adjustments and support being provided. It may also be helpful for the school to consult the relevant approved authority, system office or Association of Independent Schools in their state or territory.

Where a student has been provided different levels of adjustment for the minimum of 10 weeks in the 12 months preceding Census Day, a school must report the highest level of adjustment that the student has been provided.

***Note:** The level of adjustment provided to students with disability may change over time. If a student has been included in the NCCD in previous years, the level of adjustment should be reviewed.*

Approved authorities and schools must ensure they carefully consider which level of adjustment appropriately and reasonably applies to each student based on documented evidence. The department actively monitors the information reported in the NCCD each year, including comparing student numbers and characteristics by level of adjustment reported across multiple years. Inaccurate reporting may result in compliance action being taken and/or overpayments being recovered.

Useful resources on the Portal:

- [Guide to choosing level of adjustment](#)
Checklists to assist schools to differentiate between levels of adjustment.
- [Levels of adjustment viewer](#)
Tool to make comparisons between two levels of adjustment.

C.3.1. Adjustment(s) must have been provided for a minimum of 10 weeks

Where a student is counted in the NCCD, the school must have documented (physical or digital) evidence that the student has been provided with adjustment(s) to address the functional impact of a disability for a minimum of 10 weeks (cumulative) of school education in the 12 months preceding Census Day.

The adjustment(s) provided:

- may vary from infrequent or occasional (e.g. for a specific class or activity) through to all day every day of the week
- do not need to take place every day over the 10 weeks
- may comprise weeks that are not consecutive and may be split across school terms
- may include time when a student is participating in a school-based activity during holidays (e.g. a camp, excursion) where the school is providing adjustments.

Where a student receives adjustment(s) to address their disability for any amount of time within a school week, this constitutes a 'week' for the purposes of the [NCCD](#).

The '10-week rule'



To include a student in the NCCD, the school must have:

documented evidence that it has provided **reasonable adjustments** to address their individual education needs as a result of the **functional impact of a disability**.

The adjustments must have taken place for a **minimum of 10 weeks** of school education, in the 12 months preceding the NCCD Census day.



The adjustments do not need to take place each and every day over a 10-week period and can be cumulative over the data collection period, August to August.



Where a student receives adjustments for any amount of time within a school week, that constitutes a 'week' for the purposes of the 10-week rule.



The provision of adjustments over the 10 weeks may comprise weeks that are not consecutive and may be split across school terms. They may also include time when a student is participating in a school-based activity during school holidays (eg a camp, excursion) where the school is providing adjustments.



Where a student has enrolled in the school at any time within the 12 months prior to Census day, evidentiary requirements still apply. Evidence of adjustment(s) from the student's previous school can be included, provided there is evidence that similar adjustment(s) are being implemented at the new school within the 12 months prior to Census day, which is usually the first week of August each year.



Where the school does not have evidence of a student having received adjustments for at least 10 weeks, that student **must not be counted** in the NCCD.

For information about adjustments, see the resource

Strategies to support decision-making.

The NCCD Portal has information on **evidence to support decisions.**



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C.4. Step 4: Determine the category of disability

The category of disability selected will be the area of disability that is the main driver or focus of the adjustments being provided for the student to support their learning. This category may change over time.

See [Appendix 2: Broad categories of disability](#) and the [Category of disability](#) page on the Portal.

C.4.1. Students with multiple disabilities

If a student has multiple disabilities or does not readily fit within one category, the school team, using its professional judgement and based on documented evidence, must select the disability category that requires the greatest extent of adjustment(s) to enable the student to access and participate in education.

C.4.2. Imputing disability

In cases where a medical or allied health professional diagnostic report is not available, a disability may be 'imputed' to a student who is receiving educational adjustments based on the definition of disability in the DDA.

An imputed disability is an undiagnosed disability the school team considers a student to have. The school team must have reasonable grounds to make such a judgement, and evidence to support the decision.

The school must consult with the student or their associate in accordance with section C.2.3 when imputing a disability. If an educational adjustment(s) is made for students with an imputed disability and the conditions under section [B.3. Which students must be counted?](#) are met, they must be included in the NCCD.

C.4.3. Students affected by trauma

Students' experience of trauma may have wide ranging impacts and consequences that may or may not lead to a disability. Students affected by trauma may have diverse and complex needs. The appropriate response(s) provided to students who experience trauma and do not meet the DDA definition of disability, can differ from adjustment(s) received by a student with disability.

Students affected by trauma must only be included in the NCCD if they have a disability as defined in the DDA and meet the other criteria for inclusion.

C.5. Step 5: Record and retain evidence of adjustment(s)

C.5.1. Recording evidence

Where a student has been included in the NCCD, approved authorities and their schools **must** ensure that schools have sufficient documented evidence of adjustment(s) having been provided for the minimum 10 weeks during the 12 months preceding Census Day.

Schools should build evidence collection and storage into their ongoing processes for supporting students with disability throughout the year and not commence this

activity in the weeks immediately preceding Census Day. Evidence of adjustment(s) provided for students with disability should be collated during the course of implementing the adjustments, not created separately. Schools, sectors and jurisdictions should have clear protocols on how such evidence is recorded and stored.

The evidence may reflect a wide range of practices in schools for meeting the educational needs of students with disability. Each school's evidence will reflect individual student needs and the school's learning and support processes and practices. This includes evidence in all the following four general areas:

- assessed individual needs of the student
- consultation and collaboration with the student, or parents, guardians, carers, or associates
- that at least 10 weeks of adjustment(s) (cumulative) have been provided to the student (in the 12 months preceding Census Day) to address their assessed individual needs associated with disability and evidence to justify the level reported
- ongoing monitoring and review of the adjustment(s).

Note:

Evidence must also be recorded that:

- *supports a decision made that the student has a disability according to the definition in the DDA (outlined in [Appendix 4. Glossary](#))*
- *suitable quality assurance measures exist to ensure that the NCCD reporting is accurate and meets the requirements of the Australian Government (see section [C.6 Step 6: Quality Assurance](#)).*

Where evidence maintained is not over consecutive weeks, schools must have cumulative evidence equivalent to at least 10 weeks that supports the action taken during those periods, as reflected in their day-to-day planning and monitoring processes.

Where the school does not have evidence of a student having received adjustment(s) for at least 10 weeks in the 12 months preceding Census Day, that student **must not be counted** in the NCCD.

Further information on the Portal:

- [What evidence is the NCCD based upon?](#)
Guidance on types of evidence required.
- [Examples of evidence](#)
Examples of evidence that could support a student's inclusion in the NCCD.
- [NCCD evidence templates](#)

Templates that can be used to collate evidence. Note: your educational authority may provide templates for you to use.

C.5.2. Retaining evidence

The school's approved authority **must** ensure the associated records to support NCCD information are kept for 7 years¹⁶. Such records include documentation to satisfy the evidentiary requirements for including a student in the NCCD. Some forms of evidence may also fall under other jurisdictional record management requirements that necessitate their retention for periods longer than 7 years. It is important to check your jurisdiction's records management requirements.

Approved authorities **must** ensure that records of evidence are maintained at the approved authority or school level.

Note: *If an approved authority chooses not to store those records directly (that is, in its own possession), then it must ensure that it has arrangements in place for such records to be kept in some other manner (for example, securely at the school level) for the time required, and with full access available to the approved authority. The department may also require access to such records.*

Each approved authority must ensure that it complies with section 37 of the Regulations; it cannot shift responsibility to another entity.

At a minimum, records should be kept for each student included in the NCCD demonstrating evidence collected as per section [C.5.1 Recording evidence](#).

C.6. Step 6: Quality assurance

The quality and reliability of information gathered under the NCCD is critical. Nationally consistent, high-quality data means that schools, education authorities and governments can confidently use this evidence base to inform funding, policy development and planning at federal, state, and local levels for students who are receiving adjustments because of disability. The NCCD also provides an opportunity for schools to evaluate their learning and support systems and processes and focus on quality teaching for all students.

Education authorities and schools should implement quality assurance processes to ensure accuracy and consistency in assessment of students for inclusion in the NCCD.

C.6.1. Moderation

Moderation of NCCD information allows individuals within a school to collaborate, validate and learn from one another to regulate the assessment and data collection process. It is a key activity to reduce variability in professional judgement of school teams. Schools are strongly encouraged to perform internal moderation on their

¹⁶ An approved authority must keep records relating to its compliance with the Act and Regulations for 7 years (see section 37 of the Regulations).

NCCD data. The [NCCD Moderation Resource for Schools](#) is available on the Portal to assist.

It is essential that school teams actively engage in quality assurance processes with ongoing and direct reference to the levels of adjustment descriptors and the broad category of disability descriptors.

C.6.2. Schools

As the key decision makers for the NCCD for their schools, principals and/or their executive are responsible for NCCD quality assurance and should, prior to submission of their NCCD information, ensure that the:

- students counted in the NCCD are those who should be counted
- students are counted in the correct level of adjustment and category of disability
- school has sufficient documented evidence in the four key evidence areas to support the inclusion of a student in the NCCD.

C.6.3. Approved authorities

Approved authorities are also responsible for quality assuring the information before submitting it to the NCCD collection. Assurance activities may include, but are not limited to:

- conducting moderation sessions with schools
- providing staff to assist schools when assessing students or reviewing students for inclusion in the NCCD
- investigating data anomalies in pre- and post-census data.

C.6.4. The Australian Government Department of Education – assurance activity for non-government schools

The Census Post-Enumeration is an annual assurance activity conducted to validate student counts self-reported in the Non-Government Schools Census are both accurate and appropriate for funding and reporting purposes. The Census Post-Enumeration also sights NCCD evidentiary documentation.

As part of this process, individual student records containing personal information may be collected and reviewed by the department or subcontractors.¹⁷ False or misleading data may be subject to investigation and prosecution.

C.6.5. Government education authorities

State and territory government educational authorities carry out quality assurance processes for government schools within their jurisdictions. For more information, contact your education authority (see [Key contacts](#) on the Portal).

¹⁷ Appointed as authorised persons under the Regulations. Personal information is handled in accordance with the Privacy Act.

C.6.6. Non-government representative bodies

Non-government representative bodies also carry out quality assurance processes for their schools. For more information, contact your representative body (see [Key contacts](#) on the Portal).

C.7. Step 7: Approve the data

Before the submission of NCCD data to the department, the school processes followed under the NCCD, DDA and the Standards, and the evidence identified by the school team, **must** be approved by the appropriate person at the school location.

This includes:

- approval by the principal or member of the school executive responsible for the accuracy of the data and verifying that there is evidence to support the inclusion of each student in the NCCD
- details of any moderation processes employed by the school to achieve consistency in decisions about students included in the NCCD
- any other requirements of, or reviews by, the approved authority, which is accountable for the approval of the submission of NCCD data for the school location to the department.

Further information on the Portal:

- [Notice for schools and school principals](#)

C.7.1. Informing parents, guardians, carers or associates that a student has been included in the NCCD

Schools should attempt to inform parents, guardians, carers or associates that a student has been included in the NCCD.

In some circumstances, a school may be unable to appropriately engage with parents, guardians, carers or associates on a student's inclusion in the NCCD. For example, they may:

- be uncomfortable with the label 'disability' and the provision of the necessary adjustments
- not believe their child has a disability
- request that the school not include the student in the NCCD
- not respond to the school's efforts at communication.

In such circumstances, the reason(s) for not engaging further should be documented.

When attempts made by a school to inform parents, guardians, carers or associates that their student is included in the NCCD have been unsuccessful, these attempts

should be documented. This documentation need not be extensive, for example a note in the student record would suffice.

In all cases, the school **must** still provide appropriate adjustment(s) and include those students in the NCCD, regardless of the level of engagement of parents, guardians, carers or associates.

A [Fact Sheet](#) for parents, guardians, carers and associates is available on the Portal.

C.7.2. Consent for a student's information to be included in the NCCD

Consent is **not** required for a student's information to be collected for the purposes of the NCCD. This is because the collection is required and authorised by law¹⁸.

Parents, guardians, carers, students and associates are not required under the Act or the Regulations to disclose information to their school for the purposes of the NCCD. However, whether parents, guardians, carers, students or associates choose to disclose such information to the school or not, an approved authority **must** still provide any relevant information it holds (or has collected from other sources) to the department.

If a person with responsibility for a student objects to that student being included in the NCCD, and such objection is not able to be overcome through engagement and discussion, this does not absolve the approved authority from including that student in the NCCD as required by law.

C.8. Step 8: Submit the data

Depending on the school type, NCCD information may pass through a central collection point (such as a state or territory education authority or another body such as a system office for non-government systemic schools) or may be submitted directly to the department by the school.

Generally, government schools and non-government systemic schools provide their information through their education authority or system office to the department, while independent schools will provide their information directly to the department. Information submission for non-government schools is part of the Non-Government Schools Census.

C.8.1. Government schools

Schools provide their NCCD information to their state or territory authority in a manner prescribed by the authority. These authorities then provide the information to the department for government schools in their jurisdiction¹⁹. Specifications for

¹⁸ See paragraph 77(2)(f) of the Act and sections 52 and 58A of the Regulations and Australian Privacy Principle 3 in Schedule 1 to the Privacy Act.

¹⁹ In accordance with subsection 52(4) and section 58A of the Regulations.

the required NCCD data are detailed in the annual *Data Technical Specification for the Government Schools Data Submission*.

C.8.2. Non-government schools

The NCCD collection for non-government schools is part of the department's Non-Government School Census (the Census). Prior to the Census, the department will provide submission instructions and requirements including information about what data is collected by the department and information about the privacy of data that is submitted.

The department's portal for collecting the Census is [SchoolsHUB](#). SchoolsHUB includes a help section, including the ability to request support to complete NCCD requirements.

This applies for all non-government schools, regardless of whether they are an approved authority for a single school or for more than one school, including an approved system authority.

An approved system authority for a group of non-government schools may require the schools to provide NCCD information to that authority in a certain manner. This is because the approved system authority may be providing all required NCCD information to the department for its non-government schools²⁰. Non-government schools that belong to an approved system should check with their relevant authority about NCCD information submission arrangements.

All other non-government schools provide their data directly to the department.

C.8.3. Advice for new non-government schools

When a new school (that has been approved under the Act in respect of an approved authority) starts operating, the department:

- must receive advice from the approved authority that the new school has opened
- estimates the school's annual entitlement for the year
- makes initial funding payments to the school according to that estimate, then
- calculates the school's final annual entitlement using school census and NCCD data, making a corrective payment if required.

Prior to the Census in August, the actual entitlement of a school for the year cannot be established, so the department estimates the school's funding using data on students attending the school when it opens. The initial data is provided to the department as part of the approved authority's application for funding in the Statement of Enrolments section.

²⁰ In accordance with subsection 52(4) and section 58A of the Regulations.

C.8.4. Inclusion in the Census under special circumstances

An approved person may request consideration of an individual student for inclusion in the Census because of special circumstances that apply to that student (for example if the student was not in attendance during the Census reference period due to their medical condition). The request must be submitted through the Special Circumstances Application as outlined in the Non-Government Schools Census. This only applies to non-government school students.

In this circumstance, the student must **not** be counted in the NCCD. If a student is approved through a Special Circumstances Application, the department will add them to the Census (including their level of adjustment and category of disability).

D. Appendices

Appendix 1 Further information

The NCCD Portal

The [NCCD Portal](#) provides a free, comprehensive and authoritative source of information and professional learning resources relevant to the NCCD for teachers, school leaders, support staff, parents, guardians, carers and associates.

Content on the Portal supports a nationally consistent approach to reporting and further develops common understandings among school teams about the NCCD Model, levels of adjustment and categories of disability.

The materials on the Portal provide detailed guidance on:

- the process for collecting information
- how to apply the NCCD Model, including demonstrating application of the Model through case studies
- strategies to support school teams in planning and implementing the NCCD and in effective and consistent decision making
- examples of appropriate evidence of personalised learning and support that could be used to support a student's inclusion in the NCCD.

To ensure consistency, all schools should refer to the Portal, which contains the most current information on the NCCD. Schools' uptake and active use of the Portal and associated materials is central to a consistent and reliable NCCD.

Note: *State and territory education authorities and sectors also make available other resources and sector specific support materials.*

Contacts

Schools should direct questions about the application of the Guidelines or NCCD to the relevant [key contacts for government, Catholic and independent sectors](#) listed on the Portal.

Appendix 2 Levels of adjustment descriptors

The table below provides descriptors for each level of adjustment with examples of the types of adjustments that might be made at each level, and the students who may be being provided with an adjustment at each level. Details of typical adjustments and the typical students for each level of adjustment in the model, are provided as examples only. An assessment of the level of adjustment and category of disability should be made on an individual basis for all students included in the NCCD.

An accessible version is on the Portal at [Selecting level of adjustment](#).

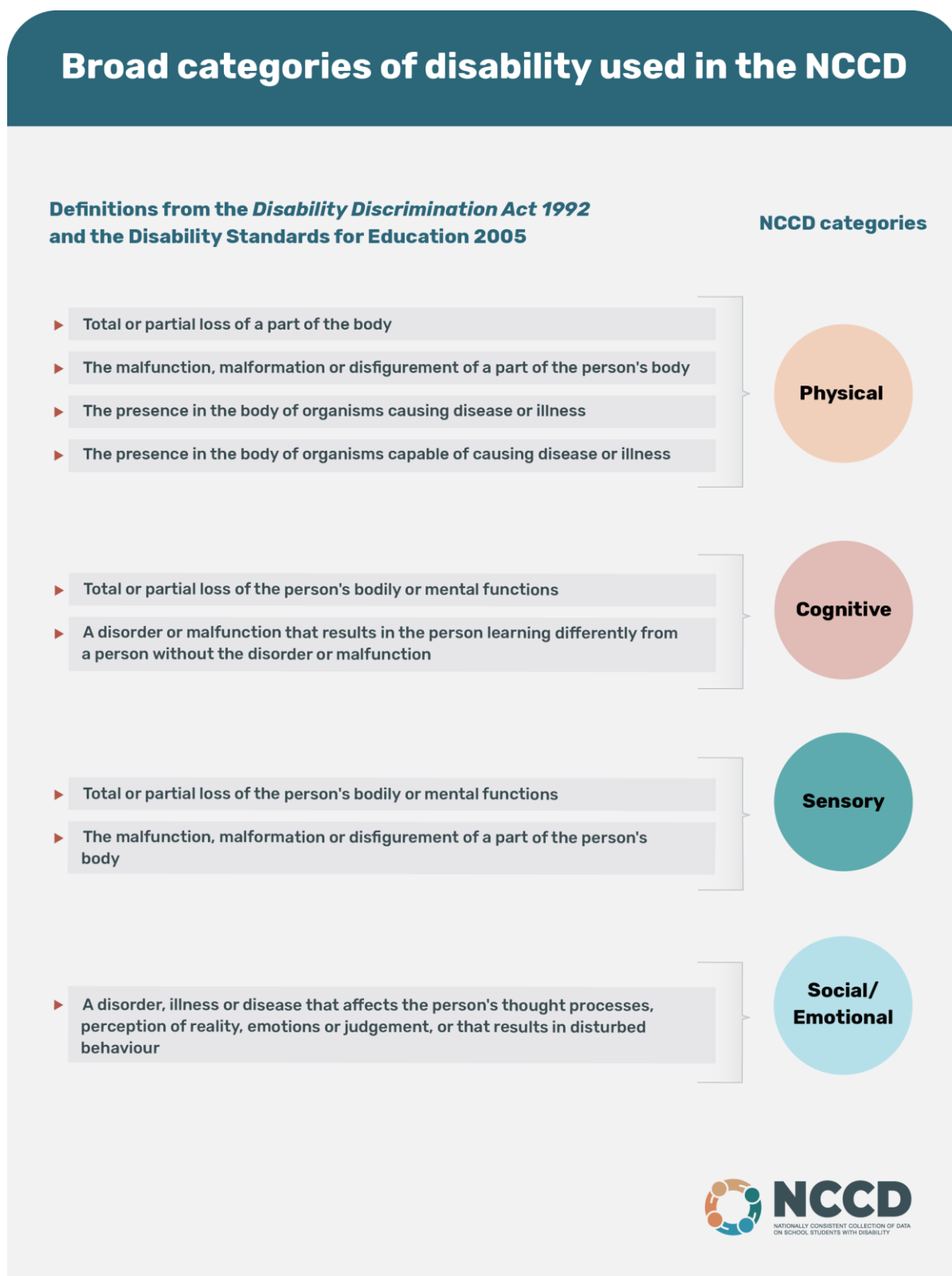
	Support provided within quality differentiated teaching practice	Supplementary adjustments	Substantial adjustments	Extensive adjustments
Level of adjustment descriptors	Students with disability are supported through active monitoring and adjustments that are not greater than those used to meet the needs of diverse learners. These adjustments are provided through usual school processes, without drawing on additional resources, and by meeting proficient-level Teaching Standards (AITSL). Adjustments are made infrequently as occasional action, or frequently as low level action such as monitoring. These adjustments may include: • explicit, minor adjustments, including targeted or differentiated teaching, assessments or activities • specific and relevant teaching strategies to support targeted areas of communication • active monitoring and supervision, meeting health, personal care and safety requirements through usual school processes • enabling access to learning through usual school processes (e.g. through a differentiated approach to teaching and learning) and existing facilities (e.g. existing modifications to buildings and learning environments). Students with a medical condition whose learning and support needs are met through usual processes (e.g. whole-school professional learning) and active monitoring by school staff are included in this category. These students may have a plan in place to support monitoring of their condition. Their identified needs would be subject to close monitoring and review.	Students with disability are provided with adjustments that are supplementary to the strategies and resources already available for all students within the school. Adjustments occur for particular activities at specific times throughout the week and may include: • adapted and additional instruction in some or many learning areas or specific activities • personalised and explicit instruction to support one or more areas of communication • planned health, personal care and/or safety support, in addition to active monitoring and supervision • adjustments to enable access to learning may include: - specialised technology - support or close supervision to enable participation in activities or the playground. - modifications or support to ensure full access to buildings and facilities.	Students with disability who have more substantial support needs are provided with essential adjustments and considerable adult assistance. Adjustments to the usual educational program occur at most times on most days and may include: • additional support or individualised instruction in a highly structured manner, including adjustments to most courses, curriculum areas, activities and assessments • personalised and explicit instruction to support one or more areas of communication • planned health, personal care and/or safety support or intervention, in addition to active monitoring and supervision • adjustments to enable access to learning may include: - specialised equipment - specific planning for access to activities or facilities - closely monitored playground supervision - modification to school environments, such as buildings and facilities - environmental adjustments to support participation in learning - provision of specialist advice on a regular basis - support from specialist staff.	Students with disability and very high support needs are provided with extensive targeted measures and sustained levels of intensive support. These adjustments are highly individualised, comprehensive and ongoing. Adjustments to the regular educational program occur at all times and may include: • intensive, individualised instruction or support in a highly structured or specialised manner for all courses and curricula, activities and assessments • intensive, individualised instruction to support multiple areas of communication • planned, highly specialised and/or intensive health, personal care and/or safety support or intervention • enabling access to learning through: - specialised equipment - highly modified classroom and/or school environments - extensive support from specialist staff.

Information to support levels of adjustment descriptors

	Support provided within quality differentiated teaching practice	Supplementary adjustments	Substantial adjustments	Extensive adjustments
Typical adjustment	Quality differentiated teaching practice caters to the needs of a diverse student population. Students at this level do not require the adjustments that are captured in the other three levels. Adjustments at this level generally: - are explicit, albeit minor, adjustments to teaching and school practice that enable students with disability to access learning on the same basis as their peers - have been made in a school as part of developing or maintaining a culture of inclusion. Specific examples of adjustments at this level could include: - adjustments to teaching and learning, such as: - a differentiated approach to curriculum delivery and assessment that anticipates and responds to students' learning differences - personalised learning that is implemented without drawing on additional resources - adjustments to enable access to learning, such as: - whole-school professional learning for the management of medical conditions such as asthma, diabetes or anaphylaxis that require active monitoring. This forms part of a school's general, ongoing practice to equip teachers and education staff with the skills and knowledge to support students' health need - building modifications that already exist in the school and cater for a student's physical disability where no additional action is required to support the student's learning.	Specific examples of adjustments at this level could include: - adjustments to teaching and learning, such as: - modified or tailored programs in some or many learning areas - modified instruction using a structured task-analysis approach - separate supervision or extra time to complete assessment tasks - the provision of course materials in accessible forms - programs or interventions to address the student's social/emotional needs - adjustments to enable access to learning, such as: - the provision of intermittent specialist teacher support - specialised technology - modifications to ensure full access to buildings and facilities - support or close supervision to participate in out-of-school activities or the playground - provision of a support service that is provided by the education authority or sector, or that the school has sourced from an external agency.	Adjustments at this level generally: - are considerable in extent - occur within highly structured situations. Specific examples of adjustments at this level could include: - adjustments to teaching and learning, such as: - frequent (teacher directed) individual instruction - access to bridging programs - adapted assessment procedures (e.g. assessment tasks that significantly adjust content and/or the outcomes being assessed) - regular direct support - adjustments to support communication, such as: - adjustments to delivery modes - significantly modified study materials - adapted assessment procedures (e.g. assessment tasks that significantly adjust mode of presentation and format) - adjustments to support health, personal care or safety, such as: - frequent assistance with mobility and personal hygiene - close supervision in highly structured situations - the provision of additional supervision on a regular basis - adjustments to enable access to learning, such as: - close playground supervision may be required at all times - regular visiting teacher or external agency support - access to a specialised support setting - essential specialised support services for use of technical aids.	Specific examples of adjustments at this level could include: - adjustments to teaching and learning, such as: - personalised modifications to all courses and programs, school activities and assessment procedures - intensive individual instruction - highly individualised learning programs and courses using selected curriculum content tailored to their needs - learning activities specifically designed for the student - the provision of highly structured approaches - adjustments to support communication, such as: - provision of much more accessible and relevant curriculum options - the use of alternative communication modes - adjustments to enable access to learning, such as: - constant and vigilant supervision - extensive support from specialist staff; the use of highly specialised assistive technology - the use of technical aids. Some students may receive their education in highly specialised facilities.
Student characteristics	Through support provided within quality differentiated teaching practice, a student is able to participate in courses and programs at the school and use the facilities and services available to all students, on the same basis as students without a disability. Examples might include: - students with medical conditions, such as asthma, diabetes and anaphylaxis, that have a functional impact on their schooling, but whose disability-related needs are being addressed through quality differentiated teaching practice and active monitoring - a student with a mental health condition who has strategies in place to manage the condition in consultation with medical professionals, that can be provided within quality differentiated teaching practice - a student with a medical condition or a mental health condition that has a functional impact on their schooling and requires ongoing monitoring but who does not require a higher level of support or adjustment during the period they are being considered for the data collection - a student who has been provided with a higher level of adjustment in the past or may require a higher level of adjustment in their future schooling.	Students at this level often require support in accessing the curriculum at the appropriate year level (i.e. the outcomes and content of usual learning programs or courses). Examples might include: students who have particular difficulty acquiring new concepts and skills outside a highly structured environment. The needs of some students at this level may be related to their personal care, communication, safety, social interaction or mobility, or to physical access issues, any of which may limit their capacity to participate effectively in the full life of their school.	Examples might include: - students who require curriculum content at a different year level to their same-age peers - students who will only acquire new concepts and skills, or access some of the outcomes and content of the usual learning program, courses or subjects, when significant curriculum adjustments are made to address their learning needs - students who have limited capacity to communicate effectively - students who need regular support with personal hygiene and movement around the school. These students may also have considerable, often associated support needs, relating to their personal care, safety, self-regulation or social interaction, which also impact significantly on their participation and learning.	Students at this level may be dependent on adult support to participate effectively in most aspects of their school program. Without highly intensive intervention, these students may otherwise not access or participate effectively in schooling Many students at this level will have been identified at a very young age and may also: - have complex, associated support needs with regard to their personal care and hygiene, medical conditions and mobility - use an augmentative communication system - have particular support needs when presented with new concepts and skills.

Appendix 3 Broad categories of disability

The infographic below outlines the DDA definition of disability, the Australian Human Rights Commission (AHRC) interpretation and how the broad disability categories used for the NCCD align with these definitions.



Appendix 4 Glossary

[the] Act means the *Australian Education Act 2013* (Commonwealth) and includes any regulation made under the Act.

Adjustment has the same meaning as in section 3.3 of the Disability Standards for Education 2005. For the Standards, each of the following is an adjustment:

- (a) a measure or action (or a group of measures or actions) taken by an education provider that has the effect of assisting a student with a disability:
 - (i) in relation to an admission or enrolment – to apply for the admission or enrolment
 - (ii) in relation to a course or program – to participate in the course or program
 - (iii) in relation to facilities or services – to use the facilities or services on the same basis as a student without a disability, and includes an aid, a facility, or a service that the student requires because of his or her disability;
- (b) an adjustment mentioned in subsection 7.2(4) of the Disability Standards for Education 2005;
- (c) if a change is made to an adjustment mentioned in paragraph (a) or (b) – the adjustment as affected by the change.

AHRC means the Australian Human Rights Commission.

Approved Authority means a body corporate or body politic approved by the Minister under section 73 of the Act to receive financial assistance from the Australian Government for one or more schools.

Approved System Authority means an approved authority that distributes financial assistance in accordance with subsection 78(5) of the Act. See subsection 78(6) of the Act, which states when an approved authority is an approved system authority.

Associate of a student has the same meaning as in section 1.4 of the Standards and includes:

- a spouse of the person
- another person who is living with the person on a genuine domestic basis
- a relative of the person
- a carer of the person
- another person who is in a business, sporting, or recreational relationship with the person.

Category of disability for the purposes of subsection 58A(6) of the Regulations and the NCCD, means any one of the following: physical, cognitive, sensory, and social/emotional. See [Appendix 3. Broad categories of disability](#) for details of each category of disability and how it correlates to the DDA and the AHRC interpretation of disability.

Census Day is the date on which non-government schools identify the student population enrolled at the school to count for the Census determined in writing by the Minister or their delegate under section 5 of the Regulations.

DDA means the *Disability Discrimination Act 1992* (Commonwealth).

[the] Department means the Australian Government Department of Education.

Disability is defined in section 4 of the *Disability Discrimination Act 1992* as:

- a. total or partial loss of the person's bodily or mental functions; or
- b. total or partial loss of a part of the body; or
- c. the presence in the body of organisms causing disease or illness; or
- d. the presence in the body of organisms capable of causing disease or illness; or
- e. the malfunction, malformation or disfigurement of a part of the person's body; or
- f. a disorder or malfunction that results in the person learning differently from a person without the disorder or malfunction; or
- g. a disorder, illness or disease that affects a person's thought processes, perception of reality, emotions or judgement or that results in disturbed behaviour;

and includes a disability that:

- h. presently exists; or
- i. previously existed but no longer exists; or
- j. may exist in the future (including because of a genetic predisposition to that disability); or
- k. is imputed to a person.

To avoid doubt, a disability that is otherwise covered by this definition includes behaviour that is a symptom or manifestation of the disability.

[a] Distance education student is as defined in section 6 of the Act:

a person is a **distance education student** at a school located in a state or territory only if:

- a. the person resides in the state or territory; and
- b. the state or territory provides funding for the school (other than financial assistance provided to the state or territory for the school in accordance with this Act) for students enrolled at the school who receive distance education (however described) from the school; and
- c. the person is not approved as a home education student (however described) in accordance with the law of the state or territory in which the person resides.

Distance education students can only be reported in the school census at schools which have been approved by the relevant state or territory for distance education.

Education authority means a state/territory government agency, or another body approved as a system office for non-government systemic schools, either religious or independent.

[a] Full-time student is enrolled and participates in a level of education that constitutes primary or secondary education, undertakes a full-time study load (as prescribed by the relevant state or territory), and is included in the school's Census Day enrolment. A full-time student has a Full Time Equivalent (FTE) of 1.0.

Functional impact of a student's disability in relation to education. This includes the impact on communication, mobility, curriculum access, personal care, and social participation. Other areas that might be considered for some students are safety, motor development, emotional wellbeing, sensory needs, and transitions.

Functional needs of a student refer to the student's educational and support needs across a range of domains.

Guidelines refer to these Guidelines for the Nationally Consistent Collection of Data on School Students with Disability approved for the year (referred to as the Ministerial Council disability guidelines, for a year, in subsection 4(1) of the Regulations).

Level of adjustment for the purposes of subsection 58A(6) of the Regulations and the NCCD, means any of the following: 'support provided within Quality Differentiated Teaching Practice', 'Supplementary', 'Substantial', and 'Extensive'.

Level of education means primary education or secondary education (including their equivalents for special schools), as defined in sections 7 and 9 of the Regulations.

Minister means the Australian Government Minister with responsibility for the *Australian Education Act 2013*.

Mature minor means a student under the age of 18 years of age whom the school team considers to have sufficient maturity to make decisions independently of their parents/guardians.

[the] **Model** means the Model for the Nationally Consistent Collection of Data on School Students with Disability, endorsed by education Ministers on 10 May 2013.

NCCD means the Nationally Consistent Collection of Data on School Students with Disability.

National Schools Statistics Collection (NSSC) refers to the dataset managed by the Australian Bureau of Statistics and reported in [Schools, Australia](http://www.abs.gov.au/ausstats/abs@.nsf/mf/4221.0) (cat. no. 4221.0; www.abs.gov.au/ausstats/abs@.nsf/mf/4221.0). It is a joint undertaking of the various state and territory departments of education, the Australian Government Department of Education and Education Ministers Meetings. The NSSC is the collection of data on students, schools, and staff involved in the provision or administration of primary and secondary education, in government and non-government schools, for all Australian states and territories.

On the same basis has the same meaning as in section 2.2 of the Standards. It means that a student with a disability has opportunities and choices that are comparable with those offered to students or prospective students (as applicable) without disability in relation to:

- admission or enrolment in an institution (this covers application for, or enrolment in, an institution, as well as treating a prospective student with disability on the same basis as a prospective student without disability where the provider makes decisions about admission or enrolment on the basis that reasonable adjustments will be provided in accordance with section 5.2 of the Standards)
- participation in courses or programs

- use of facilities and services provided by an educational institution.

Overseas student has the same meaning as in the [Australian Education Act 2013](#) and the [Australian Education Regulations 2023](#), as amended.

Section 6 of the Act states that an *overseas student* is a person:

- (a) to whom one or more of the following subparagraphs apply:
 - (i) the person holds a visa in force under the *Migration Act 1958* that permits the person to travel to Australia for the purpose of undertaking a course provided by a body;
 - (ii) the person is included in such a visa in force under that Act;
 - (iii) the person is prescribed as an overseas student by regulations made for the purposes of this subparagraph; and
- (b) who is not excluded from being an overseas student by regulations made for the purposes of this paragraph.

Section 6 of the Regulations specifies that for paragraph (b) of the definition of *overseas student* in section 6 of the Act, the following persons are excluded from being an overseas student:

- (a) a dependant of a person who is receiving a sponsorship or a scholarship for the purpose of undertaking a course provided by an institution in Australia that:
 - (i) is a Table A provider or a Table B provider (within the meaning of the *Higher Education Support Act 2003*); and
 - (ii) is meeting the full cost of the education component of the course;
- (b) a person who is undertaking a course of study provided by an institution or body in Australia under a Student Exchange Program registered by the relevant education authority in the state or territory where the person is undertaking the Program;
- (c) a person, or a dependant of a person, who is receiving a sponsorship or a scholarship from the Commonwealth for the purpose of undertaking a course provided by an institution or other body or person in Australia.

Part-time student is enrolled and participates in a level of education that constitutes primary or secondary education, and whose study load is less than the study load that a full-time student undertakes at the school and is included in the school's Census Day enrolment. Part-time students are reported as a proportion of a full-time student at one decimal place, between 0.1 and 0.9 FTE.

Personal information has the same meaning as in the *Privacy Act 1988* (Commonwealth). The Privacy Act defines personal information in section 6 as: '... information or an opinion about an identified individual, or an individual who is reasonably identifiable:

- (a) whether the information or opinion is true or not; and
- (b) whether the information or opinion is recorded in a material form or not.'

Personalised learning and support requires attention to the unique needs of students of all abilities, acknowledging the different learning needs of each student. This is particularly relevant for students with disability and additional learning needs. It aims to fulfil the diverse capabilities of each student.

There are four elements in personalised learning and support:

- consultation and collaboration with the student and/or their parents, guardians, carers or associates
- assessing and identifying the needs of the student
- providing reasonable adjustments to address the identified needs of the student
- monitoring and reviewing the impact of adjustments.

Personalised learning and support may involve one or a combination of approaches in relation to curriculum, instruction, and the environment. There is further information in [Planning for Personalised Learning and Support: A National Resource](#) .

Reasonable adjustments has the same meaning as in section 3.4 of the Disability Standards for Education 2005. An adjustment is reasonable in relation to a student with disability if it balances the interests of all parties affected. In assessing whether a particular adjustment for a student is reasonable, regard should be had to all the relevant circumstances and interests, including the matters set out in subsection 3.4(2) of the Standards.

[the] **Regulations** mean the *Australian Education Regulations 2023* (Commonwealth).

School census means the national school census required under the *Australian Education Act 2013*. Data from this census is used to calculate school funding, to inform education policy and programs and for statistical reporting, including the National School Statistics Collection (NSSC).

School funding means Australian Government school funding.

School team means a team comprised of a range of staff in the school, or that support the school. The school learning support team may include teachers with specific experience or qualifications in disability studies, but this is not mandatory.

The school team provides a mechanism for the coordination of teaching and learning and embedding support for learning into the culture and practice of the school. It plays a role in supporting teachers in identifying and responding to the additional learning needs of students, in leading and supporting professional development for staff, and in supporting high expectations for every student, including those students who require adjustments to their learning. The school team supports collaborative partnerships between the school, parents, guardians, carers or associates, other professionals, and the wider school community.

The school team is responsible to the principal. In some regional, rural, and remote schools that have a very small staff, the school team could consist of one person, the principal.

Special assistance school has the same meaning as in section 6 of the Act. It means a school that is, or is likely to be, recognised by the state or territory Minister for the school as a special assistance school, and primarily caters for students with social, emotional, or behavioural difficulties.

Special school has the same meaning as in section 6 of the Act. It means a school that is, or is likely to be, recognised by the state or territory Minister for the school as a special school, and provides education under special programs, or special activities, designed specifically for students with disability.

Special classes means classes within schools that cater for a student or group of students with specific needs related to their disability.

The Standards means the Disability Standards for Education 2005 made under the DDA.

The **Statement of Enrolments** provides enrolment figures from non-government schools for the calculation of entitlements under the *Australian Education Act 2013*.

Student with disability loading, as defined in the *Australian Education Act 2013* (section 6 and subsection 36(1)), means the funding loading provided for students with disability.